

**GOGO AIRCRAFT FUEL & GROUND FUEL SUPPORT SERVICES AND
FUEL STORAGE AND DISTRIBUTION
NAS KINGSVILLE, TX
SOLICITATION**

SPE603-26-R-0528

**COLLECTIVE BARGAINING AGREEMENT
NAS Kingsville & NALF Orange Grove, TX
October 1, 2024 to September 30, 2027**

AGREEMENT

BETWEEN



AND

**INTERNATIONAL ASSOCIATION OF MACHINISTS AND AEROSPACE
WORKERS, AFL-CIO
DISTRICT LODGE 776, LOCAL LODGE 2340**

For

**Naval Air Station
Kingsville, Texas
&
NALF
Orange Grove, Texas**

Contract SPE600-17-C-5025

October 1, 2024, to September 30, 2027

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ARTICLE I – RECOGNITION

Section 1. The Company recognizes the Union as the exclusive bargaining representative for employees at NAS Kingsville, TX, as certified by the National Labor Relations Board #16RC10239 to:

INCLUDE: All full-time and regular part-time employees of the employer engaged in the performance of aircraft refueling services at the Naval Air Station Kingsville, TX, and NALF Orange Grove, TX which includes Refuelers, Dispatchers, Fuel Accountants, Fuel Distribution System Operators (FDSOs) Fuel Distribution Mechanics (FDSMs) and Heavy Equipment Mechanics.

EXCLUDE: All office clerical employees, managerial employees, guards, and supervisors as defined in the Act.

Section 2. The Company will not discriminate against any employee because of membership in the Union.

Section 3. The Union its officers, and members, shall not intimidate or coerce any employee to become or remain a member of the Union.

Section 4. Neither the Company nor the Union shall discriminate against any employee because of race, color, creed, sex, national origin or age as defined in the Age Discrimination in Employment Act of 1967, as amended.

Section 5. No employee shall engage in any Union activity or Union business during the working hours of such employee, except when approved by the Company, to assist the designated Union Business Representative with concerns or complaints.

Section 6. No employee shall be required to become or remain a member of the Union.

Section 7. Unless specifically changed by this contract, the provisions of Company Policies apply to all employees.

Section 8. This Agreement shall inure to the benefit of and shall be binding on the heirs, executors, and administrators of the parties hereto. The provisions of this Agreement shall be binding on the Company by whatever name it may trade under, and all the terms and obligations herein shall not be affected or changed in any respect by such name change or changed in any respect by any change in the legal status or management of the Company.

ARTICLE II – MANAGEMENT RIGHTS

Section 1. The management and operation of the business of the Company, the control and regulation of the use of equipment and other property of the Company, the use of labor saving devices, the installation of new or different operating equipment, and technological methods and procedures are exclusive functions and prerogatives of management except as qualified by the terms of this Agreement.

Section 2. The Company will retain the exclusive managerial authority, rights, and powers to select and hire, terminate, classify, assign, promote, cross train and utilize employees across job classifications, maintain discipline and efficiency of employees, establish productivity standards, determine the size and composition of the work force, assign and allocate work, establish work schedules, transfer employees within the contract, select employees for layoff, schedule temporary layoffs, establish and modify rules and regulations not in conflict with this Agreement, and determine the schedule of work

Section 3. The Company shall advise the Union prior to the implementation of any new or amended rules or regulations. In addition, the Company will continue to recognize the Union's right to challenge issues, through the grievance procedure, the Union believes are not the exclusive function and/or prerogatives of management.

Section 4. Supervisors and employees not covered by this agreement shall not perform work of bargaining unit employees, except in cases of emergency, research, or work of a special nature, when necessary, to instruct employees, or when interfacing with the customer. The term "emergency" is defined to mean an unforeseen combination of circumstances that call for immediate action.

ARTICLE III – SICK LEAVE, LEAVES OF ABSENCE & BASE CLOSURES

Section 1. Union Business. The Company agrees to grant the necessary time off without discrimination and without pay, to any employee designated by a business representative of the Union in writing to attend a Union convention or to serve in any capacity on Union business provided forty-eight (48) hours written notice is given to the Site Manager by the Union specifying the name of the employee who seeks time off and the length of time off requested; provided, however, there shall be no disruption of the operations of the Company due to an insufficient number of employees available to work. The parties agree that re-scheduling without a requirement for overtime is not a disruption.

Section 2. Sick Leave. Should an illness, sickness, or injury to a full-time or part-time employee require absence from work for three (3) days due to treatment or convalescence, a certificate of fitness from a medical doctor must be furnished to the Company prior to return to work. The Company may require a physical examination by a medical doctor selected by the Company prior to the employee's return to work. If the Company requires such second physical examination, it must schedule the employee's appointment with the doctor, and will be at the Company's expense.

All full time and part time employees will accrue sick leave at 1 hour for every 30 hours worked up to a maximum of 56 hours per year. Employees can carry over up to a maximum of 56 hours per year.

Employees may use paid sick leave for an absence resulting from:

- Your physical or mental illness, injury, or medical condition.
- Obtaining diagnosis, care, or preventative care from a health care provider (doctor visits).
- Caring for the medical needs of a child, parent, spouse, domestic partner or any other individual whose association with the employee is the equivalent of a family relationship.
- Purposes resulting from being the victim of domestic violence, sexual assault, or stalking – or to assist a family member or loved one who is such a victim. (Includes civil or criminal legal proceedings and seeking counseling or relocation).

Employees may NOT use paid sick leave:

- As a vacation day.
- For Jury duty, to attend a funeral, or school appointments for your children.
- For Household or auto emergencies.

While new employees beginning accruing sick leave from the first day of their employment, they will not be permitted to use paid sick leave until the successful completion of their probationary period, unless the employee (only) has a verifiable emergency, and it is approved by management. Employees must provide proof of medical service/urgent care receipt, etc. before sick leave is paid.

Paid sick leave will be computed based on an eight (8) hour workday at the base hourly rate in effect at the time the leave is taken.

In order to be granted sick leave, the employee must notify the Company Site Manager or his designee two (2) hours prior to the start of the shift, unless extenuating circumstances apply.

Section 3. Leave of Absence. A leave of absence may be granted for restoration of health, medical, dental, or other treatment and shall not prejudice seniority status for the purpose of lay-offs and recalls. All leaves of absence must be applied for in writing, and, if granted, must be granted in writing by the Company. A certificate of fitness from a doctor must be furnished to the Company prior to return to work.

Section 4. Military Leave. The Company shall grant military leaves without pay for absences in accordance with the provisions of the Uniformed Services Employment and Reemployment Rights Act (“USERRA”) or any other similar legislation pertaining to employment rights of persons serving in the military service of the United States.

Section 5. Maternity Leave. A leave of absence without pay to a maximum of nine (9) months may be granted to a regular employee for maternity purposes. An employee performing

manual tasks should normally begin her leave at the end of the fifth (5th) month of pregnancy. Should an employee desire to work beyond the end of the fifth (5th) month of pregnancy, she must secure permission in writing from her personal physician and present the written statement to her supervisor. An employee who has been on maternity leave normally should not return to work prior to the sixth (6th) post-partum week.

Authorization to return to work must be obtained by the employee from the employee's personal physician and presented to the employee's supervisor at least one (1) week prior to the day the employee desires to return to work.

Section 6. Return from Leave of Absence. Upon return from leave of absence, the employee will be returned to work for which he or she can qualify in his or her job classification on the basis of seniority. Any employee who engages in gainful employment without permission of the Company while on leave or absence will be terminated.

Section 7. Time Off to Vote. In the event of unusual working conditions that an employee does not have sufficient time outside of working hours to vote in a state or Federal election, the employee may take off enough working time to enable the employee to vote. The employee shall give his or her supervisor at least one (1) hour notice that time off to vote is needed. Such time off to vote will be unpaid.

Section 8. Jury Duty. Upon receiving a summons to report for jury duty, an employee shall as soon as possible exhibit the summons to his immediate superior.

A regular employee who has received a summons to report for jury duty shall, unless excused in writing by the Company, report to work at such employee's scheduled reporting time if possible to comply with said jury summons; such employee shall be excused from work one (1) hour prior to the time such employee is scheduled to report for jury duty unless more time is necessary to comply with the summons and the employee's supervisor has authorized in advance.

Employees required to serve on jury duty or to report for jury examination shall receive the difference between their straight-time hourly rate and the amount received while on jury duty up to a maximum of ten (10) working days per year. An employee working the third shift will not be expected to work on the shift prior to reporting for jury duty.

Employees will be required to provide proper documentation demonstrating time served. Employees responding to a subpoena as a Company witness are considered to be on paid time.

A regular employee will furnish the Company with a certificate from the clerk of the court showing the days and hours served and a statement of the daily compensation or fee received.

Section 9. Bereavement Leave. A regular or part-time employee will receive three (3) days or twenty-four (24) hours with pay for the death of a spouse, child, parent, sibling, or close relative residing in the household; grandparent, mother-in-law, father-in-law, grandchild, or son or daughter-in-law.

The employee will notify his immediate supervisor not less than two (2) hours prior to the time the employee was scheduled to report to work of such circumstances.

The Company may require proof of relationship and proof of death.

Section 10. Inclement Weather/Base Closures

Employees covered by this Agreement will receive paid leave, to include Executive Orders, inclement weather, and other situations beyond the Company's control, as determined by the Base Commander, unless the Company personnel are considered mission essential. If the base is closed for any reason and employees are unable to work, each employee shall be reimbursed for time missed, provided that the Employer receives contract compensation from the Government for the day(s). If the base is declared closed, but the airfield remains open, this does not constitute a base closure for Maytag operations. We are essential personnel and obligated to support airfield operations.

ARTICLE IV – SHOP STEWARD

Section 1. The union may appoint one (1) shop steward from among the regular employees of the bargaining unit. A telephone will be made available to the Shop Steward for the purpose of communicating with the Union. Such calls will be placed at no cost to the Company.

Section 2. The Company will recognize the steward for the purpose of representing employees in Step One of the grievance procedure.

Section 3. No person shall have or exercise any of the authority or duties of a shop steward unless and until written notice of his appointment and revocation of all prior appointments, if any, signed by a business representative of the Union, shall be filed with the Site Manager.

Section 4. A steward, with the permission of his supervisor, will be afforded up to one (1) hour of pay to investigate or process a stated grievance on-site; provided, however, there shall be no disruption of the operations of the Company. A steward desiring to investigate or adjust a grievance during regular working hours shall report to and request a permit from his supervisor. The permit shall state the nature of the grievance and the time of issuance. Upon completion of the investigating or processing of the grievance, the steward shall promptly report to the steward's supervisor who shall record the time on the permit. The Steward shall initial the permit and return to work. Any investigative process over one (1) hour is without pay.

ARTICLE V – INSPECTION PRIVILEGE

Section 1. The Company agrees to permit not more than two (2) Union representatives, other than employees of the Company in the bargaining unit, to enter the areas where members of the

bargaining unit are employed for the purpose of ascertaining whether this Agreement is being observed or for assisting in the adjustment of grievances; provided, that any such Union representative shall first obtain permission from a Project Manager or Assistant Project Manager and further provided that there shall be no interruption of the work of the Company or of any employee of the Company. Each such Union representative may be accompanied by a representative of the Company while on the premises of the Company.

Section 2. The Union shall indemnify, defend, and save harmless against any and all claims, demands, suits, or other forms of liability arising out of any injury sustained by any representative of the Union while on the property or equipment of the Company.

ARTICLE VI – GRIEVANCES

Section 1. A grievance is defined as a complaint by an employee or the Union concerning the interpretation or application of the provisions of this Agreement. All grievances shall be settled in accordance with the following grievance procedure:

STEP 1: Any employee who feels that he has a grievance shall take the matter up with his immediate supervisor with or without the shop steward present within three (3) working days from the date of the occurrence.

STEP 2: If a grievance is not satisfactorily resolved by the employee's immediate supervisor, the grievance shall be formally documented, signed by each employee involved, and the Shop Steward or the Union's designated representative. The written grievance:

- (a) Must state the section or sections of this Agreement involved;
- (b) Must indicate in what manner it is claimed that the Company violated this Agreement or failed to perform some obligation under this Agreement; and
- (c) Must specify what relief is being sought.

The written grievance must be filed with the Company Site Manager within seven (7) working days from the date of the occurrence of the grievance or the grievance shall be forever barred. Representatives of the Company shall confer with a Business Representative of the Union within five (5) working days from the date the grievance is filed in writing with the Company. The Company shall render a written decision regarding the grievance within five (5) working days after conferring with the Union Representative.

Section 2. Should the written decision rendered by the Company under Step 2 of this Article be unacceptable to the Union or should the Company fail to render a written decision within five (5) working days after conferring with the Union Representative, the Union may within ten (10) working days after the date the decision of the Company was rendered or within fifteen (15) working days after the conference with the Union Representative, whichever occurs sooner, appeal the grievance to arbitration by giving written notice via certified mail, return receipt requested, to the Company of the intention of the Union to submit the grievance to arbitration. Such a notice must:

- (a) Identify the grievance by number;
- (b) State the applicable section or sections of this Agreement involved;
- (c) Indicate in what manner it is claimed that the Company has violated this Agreement or failed to perform some obligation under this Agreement; and
- (d) Specify the relief sought by the Union.

Unless the notice of intent to submit the grievance to arbitration is given as herein provided, the grievance shall be forever barred.

Section 3. Before any matter is submitted to an arbitrator, either party may request a meeting to resolve the grievance. This meeting will be between a Company senior level manager and the Union Business Representative or their designated representatives.

Section 4. Within ten (10) working days after the mailing of the notice of intent to submit a grievance to arbitration, the Union shall forward by certified mail, return receipt requested, the written grievance, the answer of the Company thereto, if any, and a copy of this Agreement to the American Arbitration Association requesting the Association to submit the grievance to arbitration under the Regulations of the American Arbitration Association and to submit to the parties a panel of seven (7) proposed arbitrators. The Company and the Union will first seek to select an arbitrator from this list that is mutually acceptable to both parties. If this cannot be worked out to a mutually acceptable solution, each party shall separately advise the Association of its order of preference by numbering each name on the panel.

Section 5. The arbitrator designated by the American Arbitration Association will attempt to hold a hearing on the grievance within thirty (30) working days from the date of such designation. The arbitrator must agree to attempt to render a decision in writing within thirty (30) working days after the close of the arbitration hearing.

Section 6. The arbitrator shall have no authority to modify, amend, revise, add to or subtract from any of the terms of this Agreement or impose on any party hereto a limitation or obligation not explicitly provided for in this Agreement, including, but not limited to the establishment or change of wages or the wage structure or the interpretation of federal or state statutes or local ordinances that may be involved in the consideration of the grievance.

Section 7. The arbitrator shall not consider or resolve any issue or issues not directly raised by the grievance as originally filed and processed to arbitration nor shall the arbitrator render any award in favor of any person who is not specifically named as a complainant in the grievance as originally filed. The award resulting from a grievance shall not in any case be made retroactive to a date earlier than three (3) days before the grievance as presented under Step 1 of this Article and such award shall not be prospective in its nature covering events which occurred after the date the grievance was first presented under Step 1 of this Article.

Section 8. The decision of the arbitrator shall be final and binding on all parties.

Section 9. The arbitrator's fee and expenses shall be borne equally by the Company and the Union.

Section 10. The compensation, wages, and expenses of the representatives and witnesses for the Union shall be paid by the Union; the compensation, wages and expenses of the representatives and witnesses for the Company shall be paid by the Company.

Section 11. Time limits specified in this Article may be extended by written agreement of the parties.

Section 12. The Shop Steward will be afforded time off without loss of pay to investigate, discuss, and present grievances on site in accordance with Article IV, Section 4.

ARTICLE VII – NO STRIKE OR LOCKOUT

Section 1. The Union shall not engage in, or induce or encourage any person to engage in a strike, sympathy strike, work stoppage, slow down or boycott against the Company; nor shall the Union induce or encourage any employee of the Company to observe a picket line or to refuse to use, process, transport, or otherwise handle or work on any goods, articles, materials or commodities, or to perform any services.

Section 2. None of the employees covered by this Agreement shall engage in, or induce or encourage any other person to engage in, a strike, sympathy strike, work stoppage, slowdown or boycott against the Company, or a refusal in the course of employment to cross a picket line, whether maintained by the Union or another labor organization, and whether maintained at the premises of the Company or the premises of some other person or a connecting carrier, or to use, process, transport or otherwise handle or work on any goods, articles, materials or commodities or to perform any services.

Section 3. The Company shall have the right to discharge any employee who engages in any strike, work stoppage, slowdown, boycott, picketing or other activity in violation of Section 2 of this Article. The Company will not direct or authorize a lock-out situation.

Section 4. The Union shall use every reasonable means within its power to induce each employee who is engaged in a strike, work stoppage, slowdown, boycott, picketing or other activity, in violation of Section 2 of this Article, to cease such activity and to return to work.

Section 5. Neither the violation of any provision of this Agreement nor the commission of any act constituting an unfair labor practice or otherwise made unlawful by any federal, state or local law shall excuse the Union, the Company, or any employee from his/her obligations under the provisions of this Article.

Section 6. The specifically enumerated rights contained in this Article shall not in any way be deemed to limit the Company or the Union with respect to any rights that it may have as a matter of law in addition to such specifically enumerated rights.

Section 7. Should there be any dispute, complaint, or controversy as to the interpretation of any clause in this Agreement, or any grievance arising out of the operation of this Agreement, or

trouble of any kind, the employee or employees involved shall work as directed by the Company pending final resolution of the dispute, complaint, controversy, or grievance.

ARTICLE VIII – DISCHARGE OR DISCIPLINE

Section 1. The Company shall have the right to discharge or otherwise discipline any employee for just cause.

Section 2. Discipline will be in accordance with Company Policy. The Company will continue to recognize the Union's right to challenge issues, through the grievance procedure, the Union believes are not the exclusive function and/or prerogatives of management.

Section 3. The enumeration of causes for discharge in Section 2 of this Article is by way of illustration only and shall not be deemed to exclude the right of the Company to discharge an employee for any other just cause.

Section 4. An employee, who is unable to report for work at his regular starting time for any reason(s), shall notify his immediate supervisor if available or his designated alternate, (Project Manager or Assistant Project Manager), not less than two (2) hours before the employee is scheduled to report to work. Violation of this Section will be in accordance with Company Policy.

Section 5. In the case of any dispute pertaining to discharge or discipline, the matter shall be disposed of in the same manner as herein provided for the resolution of any other grievance; provided, that such grievance pertaining to discharge or discipline shall be filed in writing with the Site Manager or his designated representative within three (3) working days of the discharge or discipline and signed by the aggrieved employee and the Union. If the grievance is not so filed, the grievance shall be forever barred.

Section 6. Offenses with Warning Notices

- a) All employees are required to comply with the Company's regulation, and standards of behavior and performance. The Company has established a progressive discipline policy in which it attempts to provide employees with notice of deficiencies and the opportunity to improve.
- b) The Company reserves the right to discipline, suspend and discharge any employee for just cause and the determination of just cause will be subject to the grievance and arbitration procedure of this agreement. No employee will be discharged, except as hereinafter provided, unless he/she has been given written notices and a copy thereof will be given to the Union. Such notice shall state the complaints of the Company.

- 1st Offense – Documented Verbal Warning
- 2nd Offense – May involve Written Notice
- 3rd Offense – May involve Suspension
- 4th Offense – May involve Discharge

- 1) A documented verbal warning shall be removed from the employee's file after a period of six (6) months from the date of issue.
- 2) A letter of warning or reprimand shall be removed from the employee's file after a period of nine (9) months from the date of issue, unless mutually agreed to be reviewed and removed after a period less than nine (9) months from the date of issue.
- 3) A letter of suspension shall be removed from the employee's file after a period of Twelve months after the date of issue, unless mutually agreed to be reviewed and removed after a period less than twelve (12) months.

Section 7. Offenses Without Warning Notices

- a) No warning notice will be given to an employee before he is discharged for just cause if the cause is for serious misconduct, or other circumstances, such as, but not limited to:
 - 1) Possession, consumption, use, transfer or being under the influence of alcoholic beverages, marijuana, inhalants, intoxicants, illegal drugs, narcotics, or the misuse of legal drugs, on Company time, or in areas of buildings assigned to the Company including lunch and dinner breaks.
 - 2) Insubordination. For this purpose, insubordination means a pattern or aggravated, isolated instance of challenging a supervisor's authority or a refusal, after a supervisor gives a direct order and explains the consequences of refusal, to perform assigned work; unless the refusal is due to a working condition which is unsafe, unhealthful, or unlawful.
 - 3) Theft, attempted theft, destruction, abuse, or unauthorized removal of property of the Company, other employees, the government or others.
 - 4) Unless work related, an employee is absent for three (3) days without previously notifying the Company, except in cases of justifiable extenuating circumstances. (Job Abandonment)
 - 5) An employee fails to return to work within ten (10) working days of notice of recall given by the Company or by Registered or Certified mail.
 - 6) An employee overstays a leave of absence without notifying the Company except in cases of justifiable extenuating circumstances.
 - 7) Possession of unauthorized or illegal firearms or other dangerous weapons at work or during the course of employment or in areas assigned to Company at any time.
 - 8) An employee gives false reasons for obtaining a leave of absence.
 - 9) Falsification of Company, State, Federal or contract related records or providing false documentation, testimony or withholding relevant information on official statements.
 - 10) An employee loses his/her base clearance, unescorted access to Company- managed facilities, driving privileges and/or CDL, or security clearance.
 - 11) Failure or refusal to submit to random drug/alcohol screening or reasonable suspicion drug/alcohol screening or workplace accident drug/alcohol or unsatisfactory results from such screening.

- 12) Threats to harm, fighting, inciting a fight or attempting to physically injure others on Company time or in areas assigned to the Company at any time.
- 13) An employee has been in layoff status more than eighteen (18) months or is absent because of sickness or injury or similar cause for more than twelve (12) months; extension may be granted upon written request.
- 14) A significant safety violation as determined by the Company or the Government.

ARTICLE IX – PROBATIONARY EMPLOYEES

Section 1. Each person newly employed by the Company and each person reemployed by the Company, after a break in service of over sixty (60) calendar days, will be a “probationary” employee for a period of one hundred and twenty (120) calendar days from the first day of the latest continuous period of employment. During this time the individual will be on trial to demonstrate their qualifications for regular employment status. During the “probationary” period, the Company may discharge such person for any reason whatsoever, and such discharge shall not be subject to the grievance procedure. Upon completion of the probationary period, the Company shall classify such person and the length of continuous service of such person with the Company shall be computed from the date of actual employment.

ARTICLE X – WAGE RATES

Section 1. The minimum wage rates for all employees shall be:

<u>Classification</u>	Current	10/01/2024 (5%)	10/01/2025 (3%)	10/01/2026 (3%)
Refueler/Driver	\$27.89	\$29.28	\$30.16	\$31.06
Dispatcher	\$29.40	\$30.87	\$31.80	\$32.75
Fuel Distribution System Operator	\$29.86	\$31.35	\$32.29	\$33.26
Fuel Distribution System Mechanic	\$30.09	\$31.59	\$32.54	\$33.52
Heavy Equipment Mechanic	\$35.62	\$37.40	\$38.52	\$39.68
Dispatcher / Fuel Accountant	\$30.29	\$31.80	\$32.75	\$33.73

ARTICLE XI – WORK WEEK, OVERTIME, AND WORK OPPORTUNITIES

Section 1. The payroll workweek will begin at 12:01 A.M. on Monday and will end midnight the following Sunday.

Section 2. The hours of work shall be continuous except for a meal period of not less than thirty (30) minutes or more than one (1) hour. The Company may approve a continuous shift without a designated meal period. The meal period shall be taken after the employee has been on duty three (3) hours and before the employee has been on duty six (6) hours.

Section 3. All work performed in excess of forty (40) hours in any one (1) work week by an employee is subject to the overtime provision of the Fair Labor Standards Act, as amended from time to time. Holiday pay shall be considered time worked for the purposes of computing overtime.

Section 4. There shall be no pyramiding of overtime.

Section 5. A regular full-time employee who reports to work on his scheduled workday shall be given an opportunity to work four (4) hours. A part-time employee who reports to work on his scheduled workday shall be given an opportunity to work two (2) hours.

Section 6. A regular full-time employee who is called into work on his scheduled day off shall be given an opportunity to work a minimum of four (4) hours. A part-time employee who is called into work on his scheduled day off shall be given the opportunity to work a minimum of two (2) hours.

Section 7. A regular full-time employee who is called into work before his regular starting time or called back to work after having completed his scheduled shift on a day he is scheduled to work shall be given an opportunity to work a minimum of four (4) hours. Work performed immediately preceding or immediately following the scheduled shift of an employee shall be deemed a part of the scheduled shift of the employee.

Section 8. Overtime work shall be offered as equally as practicable to regular full-time employees. Should the Company fail to afford a regular full-time employee the opportunity to work such employee's proportionate share of overtime, such regular full-time employee shall be offered the next opportunity or opportunities to work overtime for which such employee is available and qualified until such employee has received an opportunity to work such employee's proportionate share of overtime. In no event shall the Company be required to pay for any time not worked under this Section.

Section 9. Determination of starting time and hours of work shall be made by the Company and such schedules may be changed from time to time to suit varying conditions of business. The starting time of the various shifts will be as follows:

First Shift: Beginning at, or after 0630 hours but before 1000 hours.

Second Shift: Beginning at, or after 1500 hours but before 1600 hours.

Third Shift: Beginning at, or after 2200 hours but before 0001 hours.

Section 10. Pay periods will be in accordance with Maytag Aircraft LLC's established Company pay cycle. Pay periods will run from the 1st to the 15th of the month and the 16th to the last day of the month. Paydays are semi-monthly and fall on the 15th and the last day of the month. If a payday should fall on a weekend or a scheduled holiday, employees will receive their paychecks on the Friday before the weekend or the day before the holiday, whichever applies.

This pay method may change if, during the duration of this Agreement, a new payroll system is implemented.

Any employee laid off, terminated or voluntarily quitting will be paid in full, in accordance with Texas state law or on the regular pay day of the next pay period, whichever is sooner. When an employee is separated from the Company, including retirement, except for when an employee does not give two (2) weeks' notice prior to a voluntary quit or when an employee is terminated for cause, he/she shall be paid for any unused, earned vacation.

ARTICLE XII – HOLIDAYS

Section 1. The following holidays shall be recognized:

New Years Day	Labor Day
Martin Luther King Day	Columbus Day
Presidents Day	Veterans Day
Memorial Day	Thanksgiving Day
4 th of July	Christmas Day
Juneteenth	

Section 2. When any one of the aforementioned holidays falls on a Saturday the preceding Friday shall be observed as the holiday. When any one of the aforementioned holidays falls on a Sunday the following Monday shall be observed as the holiday.

Section 3. Each full-time employee who is not on layoff or leave of absence or sick leave shall be paid for eight (8) hours at his regular straight-time rate of pay for each of the holidays referred to in Section 1 of this Article; provided, that such employee worked his scheduled work day immediately preceding the holiday and his scheduled work day immediately succeeding the holiday involved. Part-time employees will receive holiday pay based on hours worked the week prior to the holiday. To calculate a part-time employee's holiday pay, divide the number of hours the employee worked the week prior to the holiday by forty (40) (regular work week for full-time employee). Then, multiply that amount by eight (8) (amount of hours a full-time

employee receives for holiday pay). For example, a part-time employee who worked twenty (20) hours the week prior to the holiday would be entitled to four (4) hours of holiday pay ($20/40 \times 8 = 4$).

Section 4. Any full-time employee who is scheduled to work on a holiday and does not show up for work shall receive no pay for such holiday.

Section 5. Any full-time or part-time employee who works on a holiday referred to in Section 1 of this Article shall be paid the regular straight-time rate of pay of such employee for the hours actually worked plus a holiday differential of time and one half ($1 \frac{1}{2}$).

Section 6. When a holiday occurs during an employee's scheduled vacation, the employee shall receive one (1) extra vacation day.

ARTICLE XIII – VACATIONS

Section 1. The vacation period shall be computed based on continuous service from the employee's anniversary date. Regardless of the day of the month service with the Company began, an employee will earn vacation time beginning the first day of the month that employment service began.

Section 2. Employees with continuing service shall be entitled to the following hours/days of paid vacation:

1 – 5 years of continuous service	80 hours/10 days
6 – 10 years of continuous service	120 hours/15 days
11 – 20 years of continuous service	160 hours/20 days
21 - 30 years of continuous service	200 hours/25 days
31+ years of continuous service	240 hours/30 days

Section 3. Vacation pay for hourly paid employees will be computed at the regular straight hourly rate of the employee at the time the employee's vacation begins.

Section 4. All earned vacation time will be used by the employee, during the twelve (12) months after it is earned and also prior to expiration of the contract. Except for the provisions set forth in Section 9 of this Article, vacation time not taken will be lost.

Section 5. To allow for adequate advanced managerial scheduling of personnel, an application for vacation must be submitted in writing by the employee to his/her immediate

supervisor five (5) days prior to the employee's proposed vacation time and approved by such supervisor and the Site Manager, in writing, prior to taking the vacation.

Section 6. So far as practicable, vacations will be granted by the Site Manager during the week or weeks selected by the employee, but final determination of when an employee will take a vacation will be left to the Company in order to ensure the orderly operation of the business of the Company.

Section 7. When a decision is made between two employees desiring to take a vacation at the same time, the employee who is first in submitting his or her vacation paperwork to the Site Manager will be granted vacation at his or her desired time.

Section 8. An employee, who voluntarily resigns after giving the Company two (2) weeks written notice, will receive pay for any unused, earned vacation.

Section 9. When an employee's application for vacation has been approved by the employee's supervisor and the Site Manager, and the Company requires the employee to work during the employee's scheduled vacation and the Company is unable to reschedule a vacation for the employee within the employee's vacation period, the employee may carryover his/her vacation to be used within ninety (90) days after the employee's anniversary date.

Section 10. All employees will be allowed to carry over sixty (60) hours of vacation time on their anniversary.

Section 11. In accordance with the paragraph above, once approved, an individual's vacation period may not be changed or amended without his/her consent except in cases of extreme emergency.

Section 12. When a holiday falls within an employee's vacation period, such holiday shall not be charged as vacation hours.

Section 13. Vacation will be available to each regular part-time employee on a pro-rata basis of hours worked during the year.

ARTICLE XIV – LIFE / HEALTH INSURANCE

Section 1. The Company agrees to contribute the amounts listed below per hour paid to a maximum of forty (40) hours per week toward mandatory and elected voluntary benefits (medical and vision and/or dental) provided by the Company for all full-time employees and their legal dependents.

Current	10/01/2024	10/01/2025	10/01/2026
\$4.95	\$5.64	\$6.14	\$6.64

The insurance benefits will be in accordance with the Company's established insurance contracts and plans are subject to change when the Company deems necessary.

In the event that the Plan cost exceeds the Company's contribution rate as stated above, the Company shall have the right to, and will, deduct from the wages of each employee an amount equal to the difference between the Company contribution and the Plan cost.

Should an individual's applicable benefit amounts be in excess of the cost of these insurance benefits, the employee's residuals will be deposited in his/her own 401(k) account set up by the Company, subject to regulations under Internal Revenue Code on behalf of the affected employees.

Part-time, temporary and seasonal employees will have the hourly health and welfare fringe contribution, on a pro-rata basis, deposited in his/her own 401(k) plan.

In addition, all employees in the bargaining unit, regardless of their benefit elections, may contribute pre-tax dollars through payroll deductions to their individual 401(k) account up to the maximum of the IRS regulations.

ARTICLE XV – BULLETIN BOARDS

Section 1. The Company will provide a bulletin board in the work area. The Union may use the bulletin board for posting notices, which have been submitted to and approved by the Site Manager. Such notices shall be restricted to:

- (a) Notices of Union meetings;
- (b) Notices of Union elections;
- (c) Notices of results of Union elections;
- (d) Notices of Union appointments.

Section 2. There will be no posting or general distribution by employees of pamphlets, advertising matter, political matter, notices, or any kind of literature upon Company property other than as provided in this Article.

ARTICLE XVI – EQUIPMENT REPORT

An employee, who deems any equipment of the Company to be unsafe, will prepare a written report on a form, furnished by the Company, and deliver the report to the Company Site Manager for appropriate action, as required.

ARTICLE XVII – SENIORITY

Section 1. Seniority is defined for the purpose of this Agreement as continuous service with the present contractor or predecessor contractor on this contract performance or similar contract performance at the same federal facility.

Section 2. Part-time employees shall not accumulate seniority.

Section 3. Within thirty (30) days after the execution of this Agreement, the Company shall furnish the Union and post on the bulletin board a seniority list of all employees in the bargaining unit on the effective date of this Agreement.

Section 4. Once each quarter, the Company will provide the Union an up-to-date seniority list. The list shall contain the first and last name, seniority date, and classification. The Company shall post such list on a Company bulletin board. Any employee may contest the accuracy of the seniority list; and if an error is established, a correction shall be made.

Section 5. A full-time employee loses all seniority and all rights under this Agreement upon the occurrence of any one of the following:

- (1) Voluntary quitting;
- (2) Discharge for cause;
- (3) Failure to report for work will be handled in accordance with Company Policy;
- (4) Failure to report for work after a leave of absence;
- (5) Absence for three (3) consecutive working days unless excused by the Company;
- (6) Failure to return to work after a layoff within seven (7) calendar days after written notice by the Company to the employee's last known address appearing on the records of the Company;
- (7) Unexcused absence for more than three (3) days in any three (3) consecutive calendar months.

Section 6. In case of any dispute pertaining to the seniority list, the matter shall be disposed of in the same manner as herein provided for the adjustment of any other grievance. However, a grievance, pertaining to the seniority list, must be filed in writing with the Company Site Manager or his designated representative within ten (10) working days from the receipt of the seniority list by the Union. If not so filed, the seniority as stated on the list shall be deemed correct.

Section 7. When a vacancy occurs in an existing classification or shift, they will be posted for bid among seniority employees in the bargaining unit for a period of five (5) days (excluding weekends and holidays). Such notice shall state classification, rate of pay, shift, number of openings available, and the date and hour the bidding shall be closed. Any seniority employee desiring to be considered for the position shall sign up for such job in the space provided on the notice. When a new in-unit job classification is established by the Company, the Company shall determine the job description and the rate of pay. The Company will immediately furnish the Union with a copy thereof. In the event the Union takes exception to the job description and rate

of pay, it will advise the Company in writing within seven (7) days. If not, the job description and rate of pay shall become part of the existing Agreement.

- (a) Should the Union not agree it will state its position. The Company and the Union shall then attempt to reach an agreement. If no agreement can be reached the Union may process the grievance under the grievance and arbitration procedures.
- (b) If the grievance is processed, the arbitrator shall have the authority to determine the rate of pay. The jurisdiction of the arbitrator and his decision shall be confined to a determination by comparison with the duties and qualifications of other established jobs at NAS Kingsville, TX.

Classification or Shift Vacancies will be filled by the senior qualified employee(s), as determined the Contract and the Company. They will be notified within twenty-four (24) hours of the close of bidding. If no employee(s) bids on the opening, the least senior employee(s) in the classification will be assigned. If an employee bids on a job classification and is awarded the position, and then subsequently refuses the position as offered, then the employee will not be eligible to bid on any other future job bid or classification for a period of twelve (12) months.

Employees prevented from bidding for jobs by reason of vacation, sickness or accident can be notified by the shop steward of postings.

The successful bidder will be given ten (10) working days to successfully perform the operation. In the event an employee cannot demonstrate aptitude to perform a newly assigned job within ten (10) working days, he/she will be returned to the former classification, and if a job in the former classification is no longer available, to a comparable job. Once technical proficiency has been demonstrated to the satisfaction of the Company Site Manager, transfers or promotions, connected with this reclassification, become effective retroactive to the date the employee originally assumed these responsibilities. When necessary, seniority bumping rules will be followed.

The Union recognizes that the Company cannot guarantee that part-time employees will be limited to no more than 40% of the bargaining unit. The job descriptions for the classification titles covered by this Agreement have been developed and mutually agreed to by the Company and the Union. They are provided in Appendix A, and are made a part of this agreement and will remain in effect with no change in the material content of the job description except for changes mutually agreed to by the parties through negotiations.

Section 8. The Company and the Union agree that there shall be no discrimination by the Company or the Union against employees because of race, color, creed, religion, national origin, sex, protected status, age, union affiliation, veteran status, marital status, or because of a disability.

ARTICLE XVIII – MERGER OF PRIOR AGREEMENTS AND AMENDMENT

Section 1. This Agreement contains the sole and entire agreement and understanding of the Company and the Union with respect to the entire subject matter hereof, all prior discussions,

negotiations, commitments and undertakings being merged herein. During the negotiations which resulted in this Agreement, both the Company and the Union had the unlimited right and opportunity to make demands and proposals with respect to any subject or matter not removed by law from the area of collective bargaining, and the understandings and agreements arrived at by the parties hereto after the exercise of that right and opportunity are set forth in this Agreement. The Company and the Union, for the life of this Agreement, each voluntarily and unqualifiedly waives the right, and each agrees that the other shall not be obligated, to bargain collectively with respect to any subject or matter whether or not such subject or matter is specifically referred to or covered in this Agreement.

Section 2. This Agreement may not be modified or terminated orally, and no modification, termination, or waiver shall be valid unless in writing and signed by the party against whom the same is sought to be enforced.

ARTICLE XIX – DRUG AND ALCOHOL POLICY

Section 1. It is the intent of the Company and the Union to maintain a drug and alcohol free work environment. As a result, employees will be subject to pre-employment as well as periodic drug and alcohol testing. All testing will be done in accordance with current Department of Transportation regulations. Violation of Company's Drug and Alcohol Policy contained in the Company's Policies, as amended from time-to-time, will be grounds for termination of employment.

Section 2. The Company will incur the time and costs for Drug and Alcohol testing.

ARTICLE XX – WEARING APPAREL/MILEAGE

Section 1. The Company will reimburse each employee for safety shoes that meet Government specifications up to a maximum of one-hundred and seventy-five dollars (\$175.00) every year. Replacements may be provided to the employee for normal wear-and-tear of the safety shoes at the discretion of the Project Manager.

Section 2. The Company will provide specialized safety equipment and gear as required by state and federal safety and OSHA laws.

Section 3. Seven (7) shirt and pant sets will be provided to full-time employees and part-time employees will receive three (3) sets. Uniforms will be provided and replaced on an as-needed basis as determined by the Company Site Manager.

Section 4. A rain suit will be provided for each employee to use during inclement weather.

Section 5. The Company will provide each employee Two-hundred dollars (\$200) on October 1st of each year for laundering of their uniforms.

Section 6. Terminated employees will be required to return to the Company Site Manager all uniforms upon termination.

Section 7. Employees will be required to pay the Company for all lost/destroyed uniforms, not turned into the Company Site Manager, upon date of termination. Employee's final check will be withheld until all uniforms and issued company property and equipment in his/her possession are returned to the Company Site Manager.

Section 8. Subject to the Company's pre-approval of use, the Company will reimburse an employee the standard government mileage rate for the use of his/her privately owned vehicle on Company business. Miles traveled will be logged on a mileage sheet and submitted each week to the Company Site Manager for processing and payment. The mileage sheet must be approved by the Company Site Manager, or his designee.

ARTICLE XXI – COMMERCIAL DRIVERS LICENSE (CDL)

Section 1. To be employed in the classification of Refueler/Driver, an individual must possess and maintain a Commercial Driver's Licenses (CDL), Class A, with Hazmat endorsement.

ARTICLE XXII – SAFETY AND PRODUCTIVITY

Section 1. The Company will strive to maintain a safe and healthy work environment to protect employees from injury. It is the desire of both parties to this Agreement to maintain high standards of safety in the operations of the Company in order to eliminate, as far as possible, industrial accidents and illnesses. The Company, Union, and employees will work together and cooperate in maintaining workplace safety.

Section 2(a). The Company, Union, and the employees agree to comply with all state and federal regulations, including the Occupational Safety and Health Act of 1970, as amended, in regard to safe and healthful working conditions at NAS Kingsville.

2(b). The Company will reimburse 100% of the cost of license renewals (CDL, physical, drug screen, background check) and medical examinations to ensure that all employees will be in compliance with all such regulations stated in Sec. 2(a).

Section 3. Employees must wear all required safety devices and equipment in the performance of work tasks that require such devices and equipment as supplied by the Company.

Section 4. Employees are required to immediately report to management any accident or injury, major or minor, which may occur. If so directed, the employee will report immediately to designated medical personnel.

Section 5. The Company will designate smoking areas not in violation of Navy and insurance regulations and employees may smoke during such times as the Company may designate.

Section 6. It is agreed during the life of this Agreement, the Company will provide annual hearing tests for all employees who are covered by this Agreement, who work on the flight line high noise areas.

Section 7. It is the intent of both parties to secure and sustain optimum productivity per employee, consistent with the principle of a fair day of work for a day of pay. In accordance with this important objective, it is agreed that working time is for work only. This does not mean that employees may not present grievances during working time. Employees will be given, within a reasonable amount of time, an opportunity to present their grievances, so long as the work is not interrupted.

ARTICLE XXIII – LAYOFF AND RECALL

The following procedures will be followed in layoff and recall situations:

- (a) The Company will first terminate all probationary employees after which the least senior regular part-time employee(s) in the classification(s) affected will be laid off.
- (b) The Company will then layoff the least senior employee in the classification(s) affected.
- (c) Such employees may then displace a less senior employee in any equal or lower rated classification, provided the employee is able to perform the work without loss of efficiency.
- (d) If no employee is able to displace any employee as provided above, the employee will be placed on layoff status.
- (e) Laid off employees will be recalled in reverse order, that is, the most senior qualified being recalled first. Employees will retain recall rights for a period of twelve (12) months.
- (f) In the event of a layoff, the Company will give affected employees and the Union a forty (40) working hour notice, prior to the time the layoff is to occur provided the customer gives the same. This requirement does not apply to employees being displaced by senior employees.

ARTICLE XXIV – LEGAL WAIVERS

Section 1. The waiver of any breach or condition of this Agreement by either party will not constitute a precedent for any further waiver of such breach or condition.

Section 2. If any provision of this Agreement is in violation of the law, the parties involved will meet within sixty (60) calendar days to discuss modifying the particular provision for compliance.

ARTICLE XXV – EXCLUDED MATTERS

The parties acknowledge that during the negotiations which resulted in this Agreement, each had the unlimited right and opportunity to make demands and proposals with respect to any subject or matter not removed by law from the area of collective bargaining and that the understanding and agreement arrived at by the parties after the exercise of that right and opportunity are set forth in this Agreement. Therefore, the Company and the Union each, for the life of this Agreement, agree that the other will not be obligated to bargain collectively with respect to any subject or matter referred to or hereby covered in this Agreement.

ARTICLE XXVI – DUES CHECKOFF/UNION SECURITY

Section 1. Membership in the Union is not compulsory. Employees have the right to join, not join, maintain, or drop their membership in the Union as they see fit. Neither party shall exert any pressure on or discriminate against an employee as regards such matters.

- (a) Each employee in the bargaining unit shall, beginning on the thirty-first (31st) day following the execution of this Agreement or the thirty-first (31st) day following his/her employment, rehire, reinstatement, reemployment, recall, transfer, or regression into the bargaining unit, as a condition of continued employment in the bargaining unit, execute and deliver to the Company a payroll deduction authorization for Dues, as provided for in this Article, or pay directly to the Union an amount of money equal to the Union's regular and usual initiation fee and its regular, uniform and usual monthly dues. (Agency Fee).
- (b) Any employee within the bargaining unit who is required to contribute to the Union as provided for in Section 1(a) of this Article and who is subsequently transferred or promoted out of the bargaining unit or laid off shall not be subject to any of the provisions of this Article during the period of time such employee remains outside the bargaining unit or on layoff.
- (c) No employee within the bargaining unit shall be required to pay fees or dues covering any period during which the employee was not in the bargaining unit or was not on the Company's active payroll including layoff.
- (d) An employee within the bargaining unit shall be considered in good standing for the purpose of this Article when such employee tenders the amount of money equal to the Union's regular and usual initiation fee (due and payable only once per employee without regard to any interruption in service) and its regular

uniform and usual monthly dues to an authorized agent of the Union or through payroll initiation fees/dues deduction. Upon written demand from the Union, the Company shall terminate an employee within the bargaining unit who fails to tender the sum due the Union under Section 1(a) of this Article within thirty (30) days from the date such sum is due provided the Union informs the Company and the employee in writing and allows him/her an additional fifteen (15) days after the thirtieth (30th) day of delinquency. If the employee fails to resolve his/her dues delinquency with the Union during this fifteen (15) day period and after notification to the Company by the Union, the Company will terminate the employee effective the end of that pay period.

- (e) Employees may handle the matter of payment of Union initiation fees/dues directly with the Union. In cases where deductions are made from those who have already paid Union initiation fees/dues, the Union will make refunds directly to such employees.
- (f) Deductions shall be made from the accrued regular monthly union dues of each employee in the bargaining unit for whom the above authorization has been received, beginning with the pay for the first full pay period in the month following receipt of such authorization, provided that sufficient earnings remain to cover Union dues after all deductions required by law are made, and such dues deductions shall continue, in like manner monthly thereafter, except as qualified in this Article.

Section 2. Deductions shall be remitted to the Secretary-Treasurer of District Lodge #776 within fifteen (15) days following the payday on which the deductions were made. The Company shall furnish the Secretary-Treasurer of District Lodge #776 a list compiled in alphabetical sequence of those for whom deductions have been made and the amounts of each deduction.

Section 3. The Union will indemnify and hold the Company harmless from and against any and all claims, demand, charges, complaints or suits instituted against the Company which are based on or arise out of any action taken by the Company in accordance with or arising out of the foregoing provisions of this Article, or in reliance on any list, notice or assessment furnished under any of such provisions.

Section 4. The Union may change the authorization form from time to time with approval of the Company.

INTERNATIONAL ASSOCIATION OF MACHINISTS AND AEROSPACE WORKERS
MEMBERSHIP APPLICATION AND/OR CHECK-OFF AUTHORIZATION

Name _____ Date _____ Card no. _____
Address _____ M ☐ F ☐ Date of birth _____
City _____ State/Province _____ Zip/Postal code _____
SS no. _____ Email _____ Phone _____ Hire date _____
Employer _____ Hourly wage _____
Class of work _____ Years experience _____ Shift 1 ☐ 2 ☐ 3 ☐

Membership Application. Check here: ☐ To the Officers and Members of Lodge No. _____ (the "Lodge" or "Union"), I hereby tender my application for membership in the International Association of Machinists and Aerospace Workers (IAM). I understand that while I may be required to tender monthly fees to the Union, I am not required to apply for membership or be a member as a condition of employment and that this application for membership is voluntary. As a member, I agree to obey the Constitution of the IAM and the by-laws of my Lodge and to support the principles of trade unionism, and I authorize the IAM and/or its designated affiliate to act as my representative for collective bargaining.

If former member of IAM: Card no. _____ Lodge no. _____ Location _____ Last dues paid _____

Check-Off Authorization. Check here: ☐ I authorize my Employer to deduct from my wages and forward to the Union: (1) monthly membership dues or an equivalent service fee; and (2) any required initiation or reinstatement fee as set forth in the collective bargaining agreement between the Employer and the Union and the by-laws of the Lodge. This authorization shall be irrevocable for one (1) year or until the termination of the collective bargaining agreement between my Employer and the Union, whichever occurs sooner. I agree that this authorization shall be automatically renewed for successive one (1) year periods or until the termination of the collective bargaining agreement, whichever is the lesser, unless I revoke it by giving written notice to my Employer and Union not more than twenty (20) and not less than five (5) days prior to the expiration of the appropriate yearly period or contract term. I expressly agree that this authorization is independent of, and not a quid pro quo, for union membership, but recognizes the value of the services provided to me by the Union. It shall continue in full force and effect even if I resign my Union membership, except if properly revoked in the manner prescribed above.

Important Notice. I have examined and acknowledge receipt of the attached "Notice to Employees Subject to Union Security Clauses" (on back of pink sheet). I also understand that IAM members have certain rights and privileges as set forth in the IAM Constitution and in various Federal laws, like the Labor Management Reporting and Disclosure Act (LMRDA). Copies of the IAM Constitution and the LMRDA may be obtained by contacting the IAM General Secretary-Treasurer, 9000 Machinists Place, Upper Marlboro, MD 20772. Union membership dues and agency fees are not deductible as charitable contributions for Federal income tax purposes. Dues and agency fees, however, may be deductible in limited circumstances subject to various restrictions imposed by the Internal Revenue Code.

(Your signature) (Date)

This copy to be retained by Local Union No. _____

FORM NO. MR0001-07

For Official Use Only

Proposed by _____ Date _____

We, the undersigned Committee, report _____
(Favorable or Unfavorable)

Committee: _____

Amount paid \$ _____ Date _____

Balance of Fee Paid \$ _____ Date _____

Initiated ☐ Reinstated ☐ Date _____

Classification

Gender

_____ Journeyman	_____ Helper
_____ Specialist	_____ Apprentice
_____ Production Worker	_____ Technician
_____ Service Worker	

_____ Male
_____ Female



ARTICLE XXVII – IAM PENSION PLAN

Section 1. Effective October 2004 and continuing thereafter the Company shall contribute to the I.A.M. National Pension Plan (“Plan”) on behalf of each employee in job classifications covered by this Agreement. Such contribution to the Plan shall be for each hour or portion thereof to a maximum of forty (40) hours per workweek; and to a maximum of 2080 hours per calendar year; and shall become effective on the first day of the first two-week pay period according to the following schedule:

<u>Effective Date</u>	<u>Rate</u>
Current	\$1.25
10/01/2024	\$1.25
10/01/2025	\$1.25
10/01/2026	\$1.25

Section 2. The Company shall continue contributions to the Plan based on a forty (40) hour work week while an employee is off work in pay status due to paid vacations, paid holidays, paid sick leave, and/or other paid time off covered by this Agreement.

Section 3. Contributions for a new, temporary, probationary, part-time, and full-time employee are payable from the first day of employment.

Section 4. The I.A.M. Lodge and the Company adopt and agree to be bound by, and hereby assent to, the Trust Agreement, dated May 1, 1960, as amended, by creating the I.A.M. National Pension Fund and the Plan rules adopted by the trustees of the I.A.M. National Pension Fund in establishing and administering the foregoing Plan pursuant to the said Trust Agreement, as currently in effect and as the Trust and Plan may be amended from time to time.

Section 5. The parties acknowledge that the Trustees of the I.A.M. National Pension Fund may terminate the participation of the employees and the Company in the Plan if the successor collective bargaining agreement fails to renew the provision of this Pension Articles or reduces the Contribution Rate. The parties may increase, by mutual agreement, the Contribution Rate and/or add job classifications or categories of hours for which contributions are payable.

Section 6. This Article contains the entire agreement between the parties regarding pensions and retirement under the Plan and any contrary provision in this Agreement shall be void. No oral or written modification of this Agreement shall be binding upon the Trustees of the I.A.M. National Pension Plan Fund. No grievance procedure, settlement or arbitration decision with respect to the obligation to contribute shall be binding upon the Trustees of the said Pension Fund.

ARTICLE XXVIII – DURATION

This Agreement shall become effective upon execution and shall remain in full force and effect from October 01, 2024, until September 30, 2027.

**INTERNATIONAL ASSOCIATION
OF MACHINISTS & AEROSPACE
WORKERS, AFL-CIO, and its
LOCAL LODGE NO. 2340,
Kingsville, Texas.**

MAYTAG AIRCRAFT LLC

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]